

HOUSE JOINT RESOLUTION 146

By Williams

A RESOLUTION to propose an amendment to Article XI, Section 5 of the Constitution of Tennessee, relative to lotteries.

WHEREAS, local boards of education are charged with governing school districts so that all students receive the best educational opportunities in order to graduate prepared to enter a postsecondary institution or the workforce; and

WHEREAS, Article XI, Section 5, of the Constitution of Tennessee prohibits any lotteries or lottery-type events except as provided in said Article; and

WHEREAS, local boards of education should have the authority to hold a lottery-type event to assist in raising funds for educational programs and extracurricular activities held within the school district; and

WHEREAS, the additional funding generated by these events would create a significant benefit, as it would allow school districts the opportunity to better support current educational programs and extracurricular activities as well as provide the opportunity to create new ones; now, therefore,

BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE SENATE CONCURRING, that a majority of all the members of each house concurring, as shown by the yeas and nays entered on their journals, that it is proposed that Article XI, Section 5, of the Constitution of Tennessee be amended by adding the following language as its own paragraph immediately following the second paragraph:

Local Boards of Education shall have the power to approve lotteries conducted by a nonprofit school support organization, as defined by state law; provided, that the net

proceeds of the lottery's revenues are allocated to the Local Education Agency to be used for educational or extracurricular purposes.

BE IT FURTHER RESOLVED, that the foregoing amendment be referred to the One Hundred Fifteenth General Assembly and that this resolution proposing such amendment be published by the Secretary of State in accordance with Article XI, Section 3, of the Constitution of Tennessee by posting such amendment on the official website of the Secretary of State and on the official website of the General Assembly.

BE IT FURTHER RESOLVED, that the Clerk of the House of Representatives is directed to deliver a copy of this resolution to the Secretary of State, with this final resolving clause being deleted from such copies.